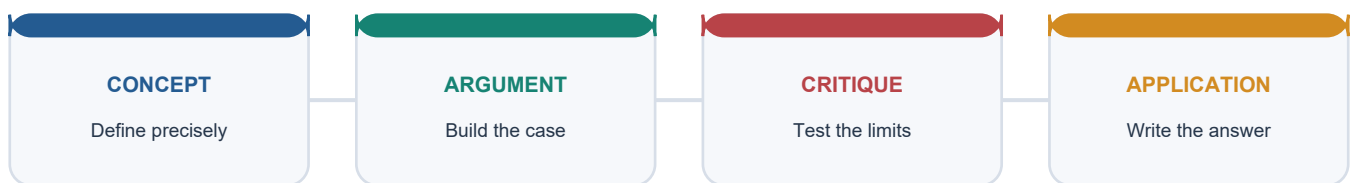


SOLVED PRACTICE WORKBOOK

Polity 47 - Comparative Constitutional Design - Solved Practice Workbook

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

Workbook Contents - Comparative Constitutional Design

Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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Polity 47 - Comparative Constitutional Design - Solved Practice Workbook

PYQS AND ANSWER PRACTICE

Official-key discipline: UPSC publishes no official descriptive model-answer key. The question wording below is retained from the repository-verified GS-II ledger; each solution is an examiner-oriented model, not an official answer.

VERIFIED DIRECT PYQ 1 - 2018 GS-II Q13 - 15 marks - 250 words

Question (exact): "India and USA are two large democracies. Examine the basic tenets on which the two political systems are based."

Model answer: India and the United States share popular sovereignty, written constitutional supremacy, elected government, federalism, bicameralism, enforceable rights and judicial review. Their institutional tenets nevertheless differ.

India has a parliamentary executive: the President is the constitutional head, while the Council of Ministers is collectively responsible to the Lok Sabha. The United States has a presidential executive with a separately elected, fixed-tenure President and institutional separation from Congress.

Indian federalism gives residuary power to the Union, single citizenship, an integrated judiciary and unequal State representation in Rajya Sabha. The US Tenth Amendment reserves undelegated powers to States or the people, each State has equal Senate representation, and federal and State courts coexist.

Both protect rights, but India combines Fundamental Rights with DPSPs, affirmative constitutional commitments and express reasonable restrictions. The US Bill of Rights and Fourteenth Amendment operate through due process and equal protection. Both courts review legislation, while India's amendment power is additionally limited by basic structure.

Thus, the systems share democratic constitutionalism but choose different accountability, stability and federal-representation mechanisms. Similar labels must be compared through powers and consequences, not treated as equivalence.

Why this earns marks: It covers common foundations and four institutional contrasts, then links design to consequences.

How to improve this answer: Add one exact constitutional provision per country; avoid calling India or the USA purely separated or purely unitary.

Compression guidance: Keep the common core, executive, federal, rights and review contrasts, and the qualified synthesis.

Demand decoding: The directive **answer** requires a direct position on "VERIFIED DIRECT PYQ 1 - 2018 GS-II Q13 - 15 marks - 250 words", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

Detailed examiner-grade model answer:

Introduction and thesis: India and the United States share popular sovereignty, written constitutional supremacy, elected government, federalism, bicameralism, enforceable rights and judicial review. Their institutional tenets nevertheless differ.

India has a parliamentary executive: the President is the constitutional head, while the Council of Ministers is collectively responsible to the Lok Sabha. The United States has a presidential executive with a separately elected, fixed-tenure President and institutional separation from Congress.

Indian federalism gives residuary power to the Union, single citizenship, an integrated judiciary and unequal State representation in Rajya Sabha. The US Tenth Amendment reserves undelegated powers to States or the people, each State has equal Senate representation, and federal and State courts coexist.

Both protect rights, but India combines Fundamental Rights with DPSPs, affirmative constitutional commitments and express reasonable restrictions. The US Bill of Rights and Fourteenth Amendment operate through due process and equal protection. Both courts review legislation, while India's amendment power is additionally limited by basic structure.

Thus, the systems share democratic constitutionalism but choose different accountability, stability and federal-representation mechanisms. Similar labels must be compared through powers and consequences, not treated as equivalence.

Analytical body:

1. **Claim and named evidence:** VERIFIED DIRECT PYQ 1 - 2018 GS-II Q13 - 15 marks - 250 words **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** Question (exact): "India and USA are two large democracies. Examine the basic tenets on which the two political systems are based." **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** Why this earns marks: It covers common foundations and four institutional contrasts, then links design to consequences. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** How to improve this answer: Add one exact constitutional provision per country; avoid calling India or the USA purely separated or purely unitary. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** Compression guidance: Keep the common core, executive, federal, rights and review contrasts, and the qualified synthesis. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: India and the United States share popular sovereignty, written constitutional supremacy, elected government, federalism, bicameralism, enforceable rights and judicial review. Their institutional tenets nevertheless differ.

India has a parliamentary executive: the President is the constitutional head, while the Council of Ministers is collectively responsible to the Lok Sabha. The United States has a presidential executive with a separately elected, fixed-tenure President and institutional separation from Congress.

Indian federalism gives residuary power to the Union, single citizenship, an integrated judiciary and unequal State representation in Rajya Sabha. The US Tenth Amendment reserves undelegated powers to States or the people, each State has equal Senate representation, and federal and State courts coexist.

Both protect rights, but India combines Fundamental Rights with DPSPs, affirmative constitutional commitments and express reasonable restrictions. The US Bill of Rights and Fourteenth Amendment operate through due process and equal protection. Both courts review legislation, while India's amendment power is additionally limited by basic structure.

Thus, the systems share democratic constitutionalism but choose different accountability, stability and federal-representation mechanisms. Similar labels must be compared through powers and consequences, not treated

as equivalence.

Executable exam-length answer / compression plan: For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

VERIFIED DIRECT PYQ 2 - 2019 GS-II Q5 - 10 marks - 150 words

Question (exact): "What can France learn from the Indian Constitution's approach to secularism?"

Model answer: French laicite protects republican public authority through state neutrality and a religion-independent civic sphere. India's Constitution instead combines equal citizenship with religious freedom, denominational rights and principled state engagement for social reform.

France can draw three lessons. First, neutrality should be tested through proportionality so that common rules do not unnecessarily exclude individual believers. Second, minority cultural and educational protection can support integration in a diverse society. Third, state engagement may be legitimate when directed to equality, dignity and reform rather than religious preference.

The transfer cannot be mechanical. French secularism arose from conflict with clerical authority, while India's model addresses deep religious plurality and social hierarchy. India itself also struggles with selective intervention and majoritarian pressure.

The valid lesson is therefore a rights-centred balance: preserve state neutrality while accommodating diversity where accommodation is compatible with liberty, equality and public order.

Why this earns marks: It answers what France can learn, identifies mechanisms and limits transplantation.

How to improve this answer: Use Articles 25-30 as Indian anchors; avoid slogans such as equal distance unless their institutional meaning is explained.

Compression guidance: Retain laicite, three lessons, historical-context caveat and rights-centred verdict.

Demand decoding: The directive **answer** requires a direct position on "VERIFIED DIRECT PYQ 2 - 2019 GS-II Q5 - 10 marks - 150 words", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

Detailed examiner-grade model answer:

Introduction and thesis: French laicite protects republican public authority through state neutrality and a religion-independent civic sphere. India's Constitution instead combines equal citizenship with religious freedom, denominational rights and principled state engagement for social reform.

France can draw three lessons. First, neutrality should be tested through proportionality so that common rules do not unnecessarily exclude individual believers. Second, minority cultural and educational protection can support integration in a diverse society. Third, state engagement may be legitimate when directed to equality, dignity and reform rather than religious preference.

The transfer cannot be mechanical. French secularism arose from conflict with clerical authority, while India's model addresses deep religious plurality and social hierarchy. India itself also struggles with selective intervention and majoritarian pressure.

The valid lesson is therefore a rights-centred balance: preserve state neutrality while accommodating diversity where accommodation is compatible with liberty, equality and public order.

Analytical body:

- 1. Claim and named evidence:** VERIFIED DIRECT PYQ 2 - 2019 GS-II Q5 - 10 marks - 150 words **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 2. Claim and named evidence:** Question (exact): "What can France learn from the Indian Constitution's approach to secularism?" **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism ->

differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

3. **Claim and named evidence:** The valid lesson is therefore a rights-centred balance: preserve state neutrality while accommodating diversity where accommodation is compatible with liberty, equality and public order.

Analysis: Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

4. **Claim and named evidence:** Why this earns marks: It answers what France can learn, identifies mechanisms and limits transplantation. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

5. **Claim and named evidence:** How to improve this answer: Use Articles 25-30 as Indian anchors; avoid slogans such as equal distance unless their institutional meaning is explained. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication.

Qualification: State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: French laicity protects republican public authority through state neutrality and a religion-independent civic sphere. India's Constitution instead combines equal citizenship with religious freedom, denominational rights and principled state engagement for social reform.

France can draw three lessons. First, neutrality should be tested through proportionality so that common rules do not unnecessarily exclude individual believers. Second, minority cultural and educational protection can support integration in a diverse society. Third, state engagement may be legitimate when directed to equality, dignity and reform rather than religious preference.

The transfer cannot be mechanical. French secularism arose from conflict with clerical authority, while India's model addresses deep religious plurality and social hierarchy. India itself also struggles with selective intervention and majoritarian pressure.

The valid lesson is therefore a rights-centred balance: preserve state neutrality while accommodating diversity where accommodation is compatible with liberty, equality and public order.

Executable exam-length answer / compression plan: For a 10-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise three points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

VERIFIED DIRECT PYQ 3 - 2020 GS-II Q4 - 10 marks - 150 words

Question (exact): "The judicial systems in India and the UK seem to be converging as well as diverging in recent times. Highlight the key points of convergence and divergence between the two nations in terms of their judicial practices."

Model answer: India and the United Kingdom share common-law reasoning, precedent, open justice, adversarial procedure and institutional concern for judicial independence. The UK Supreme Court's separation from the House of Lords and modern appointments machinery also create visible institutional convergence.

Divergence begins with constitutional authority. India's written supreme Constitution permits the Supreme Court and High Courts to invalidate legislation and issue constitutional writs. Under orthodox UK parliamentary sovereignty, courts ordinarily cannot invalidate a Westminster Act; a Human Rights Act declaration of incompatibility does not itself annul it.

India has an integrated national hierarchy and broad public-interest constitutional access. The UK contains distinct legal jurisdictions and relies more heavily on statutory and common-law remedies. Judicial appointments also differ in constitutional source and accountability structure.

Therefore, professional practices may converge, while the source and remedial force of judicial power continue to diverge.

Why this earns marks: It highlights both convergence and divergence and identifies the controlling supremacy distinction.

How to improve this answer: Add one appointment or rights-remedy example; do not call the UK Constitution unwritten or the UK Supreme Court a legislative invalidation court.

Compression guidance: Use two convergence points, three divergence points and the authority-based conclusion.

Demand decoding: The directive **answer** requires a direct position on "VERIFIED DIRECT PYQ 3 - 2020 GS-II Q4 - 10 marks - 150 words", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

Detailed examiner-grade model answer:

Introduction and thesis: India and the United Kingdom share common-law reasoning, precedent, open justice, adversarial procedure and institutional concern for judicial independence. The UK Supreme Court's separation from the House of Lords and modern appointments machinery also create visible institutional convergence.

Divergence begins with constitutional authority. India's written supreme Constitution permits the Supreme Court and High Courts to invalidate legislation and issue constitutional writs. Under orthodox UK parliamentary sovereignty, courts ordinarily cannot invalidate a Westminster Act; a Human Rights Act declaration of incompatibility does not itself annul it.

India has an integrated national hierarchy and broad public-interest constitutional access. The UK contains distinct legal jurisdictions and relies more heavily on statutory and common-law remedies. Judicial appointments also differ in constitutional source and accountability structure.

Therefore, professional practices may converge, while the source and remedial force of judicial power continue to diverge.

Analytical body:

1. **Claim and named evidence:** VERIFIED DIRECT PYQ 3 - 2020 GS-II Q4 - 10 marks - 150 words **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** Therefore, professional practices may converge, while the source and remedial force of judicial power continue to diverge. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** Why this earns marks: It highlights both convergence and divergence and identifies the controlling supremacy distinction. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** How to improve this answer: Add one appointment or rights-remedy example; do not call the UK Constitution unwritten or the UK Supreme Court a legislative invalidation court. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** Compression guidance: Use two convergence points, three divergence points and the authority-based conclusion. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: India and the United Kingdom share common-law reasoning, precedent, open justice, adversarial procedure and institutional concern for judicial independence. The UK Supreme Court's separation from the House of Lords and modern appointments machinery also create visible institutional convergence.

Divergence begins with constitutional authority. India's written supreme Constitution permits the Supreme Court and High Courts to invalidate legislation and issue constitutional writs. Under orthodox UK parliamentary sovereignty, courts ordinarily cannot invalidate a Westminster Act; a Human Rights Act declaration of incompatibility does not itself annul it.

India has an integrated national hierarchy and broad public-interest constitutional access. The UK contains distinct legal jurisdictions and relies more heavily on statutory and common-law remedies. Judicial appointments also differ in constitutional source and accountability structure.

Therefore, professional practices may converge, while the source and remedial force of judicial power continue to diverge.

Executable exam-length answer / compression plan: For a 10-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise three points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

VERIFIED DIRECT PYQ 4 - 2022 GS-II Q14 - 15 marks - 250 words

Question (exact): "Critically examine the procedures through which the Presidents of India and France are elected."

Model answer: Election procedure reflects the different offices occupied by the two Presidents.

India elects its President indirectly through an electoral college of elected Members of Parliament and elected members of State and specified Union Territory legislative assemblies. Votes are weighted to balance Union-State and population considerations, and the single transferable vote with proportional representation and secret ballot seeks broad federal acceptability. The office ordinarily functions on ministerial advice.

France elects its President by direct universal suffrage. A two-round majority system permits a second ballot between leading candidates if no candidate secures the required first-round majority. Direct election supplies a personal national mandate appropriate to a semi-presidential system in which the President has substantial powers, while the Prime Minister and Government remain responsible to the National Assembly.

India's method promotes federal inclusion and a non-majoritarian constitutional head but is remote from voters and mathematically complex. France's method provides direct legitimacy and majority endorsement but may personalise politics and create dual legitimacy or cohabitation when the parliamentary majority differs.

The procedures should not be ranked in isolation. India's indirect federal election fits a parliamentary republic; France's direct two-round election fits a politically active semi-presidential presidency.

Why this earns marks: It accurately explains both procedures and critically evaluates why each fits its office.

How to improve this answer: Mention vote-value mechanics only if exact; do not infer comparable powers merely from the shared title President.

Compression guidance: Keep both procedures, two advantages, two risks and the office-design verdict.

Demand decoding: The directive **answer** requires a direct position on "VERIFIED DIRECT PYQ 4 - 2022 GS-II Q14 - 15 marks - 250 words", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

Detailed examiner-grade model answer:

Introduction and thesis: Election procedure reflects the different offices occupied by the two Presidents.

India elects its President indirectly through an electoral college of elected Members of Parliament and elected members of State and specified Union Territory legislative assemblies. Votes are weighted to balance Union-State and population considerations, and the single transferable vote with proportional representation and secret ballot seeks broad federal acceptability. The office ordinarily functions on ministerial advice.

France elects its President by direct universal suffrage. A two-round majority system permits a second ballot between leading candidates if no candidate secures the required first-round majority. Direct election supplies a personal national mandate appropriate to a semi-presidential system in which the President has substantial powers, while the Prime Minister and Government remain responsible to the National Assembly.

India's method promotes federal inclusion and a non-majoritarian constitutional head but is remote from voters and mathematically complex. France's method provides direct legitimacy and majority endorsement but may personalise politics and create dual legitimacy or cohabitation when the parliamentary majority differs.

The procedures should not be ranked in isolation. India's indirect federal election fits a parliamentary republic; France's direct two-round election fits a politically active semi-presidential presidency.

Analytical body:

1. **Claim and named evidence:** VERIFIED DIRECT PYQ 4 - 2022 GS-II Q14 - 15 marks - 250 words **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** Question (exact): "Critically examine the procedures through which the Presidents of India and France are elected." **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** Model answer: Election procedure reflects the different offices occupied by the two Presidents. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** The procedures should not be ranked in isolation. India's indirect federal election fits a parliamentary republic; France's direct two-round election fits a politically active semi-presidential presidency. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** Why this earns marks: It accurately explains both procedures and critically evaluates why each fits its office. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: Election procedure reflects the different offices occupied by the two Presidents.

India elects its President indirectly through an electoral college of elected Members of Parliament and elected members of State and specified Union Territory legislative assemblies. Votes are weighted to balance Union-State and population considerations, and the single transferable vote with proportional representation and secret ballot seeks broad federal acceptability. The office ordinarily functions on ministerial advice.

France elects its President by direct universal suffrage. A two-round majority system permits a second ballot between leading candidates if no candidate secures the required first-round majority. Direct election supplies a personal national mandate appropriate to a semi-presidential system in which the President has substantial powers, while the Prime Minister and Government remain responsible to the National Assembly.

India's method promotes federal inclusion and a non-majoritarian constitutional head but is remote from voters and mathematically complex. France's method provides direct legitimacy and majority endorsement but may personalise politics and create dual legitimacy or cohabitation when the parliamentary majority differs.

The procedures should not be ranked in isolation. India's indirect federal election fits a parliamentary republic; France's direct two-round election fits a politically active semi-presidential presidency.

Executable exam-length answer / compression plan: For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

VERIFIED DIRECT PYQ 5 - 2023 GS-II Q4 - 10 marks - 150 words

Question (exact): "Compare and contrast the British and Indian approaches to Parliamentary sovereignty."

Model answer: Both systems developed responsible cabinet government, legislative privilege and executive accountability to the lower House. Their location of ultimate legal authority differs.

The orthodox British doctrine treats Parliament as the supreme law-maker: it may enact or repeal any law, courts ordinarily cannot invalidate a Westminster Act, and one Parliament cannot entrench law against successors. Political constraints, devolution and rights review qualify practice without creating Indian-style constitutional supremacy.

Indian Parliament is constituted and limited by a written supreme Constitution. Federal distribution, Fundamental Rights, bicameral procedures and judicial review bind ordinary legislation. Constitutional amendment under Article 368 is also limited by the basic-structure doctrine.

Thus, Britain centres legal sovereignty in Parliament, whereas India centres it in the Constitution. India borrowed parliamentary government but transformed it through republicanism, federalism, entrenched rights and constitutional adjudication.

Why this earns marks: It compares shared parliamentary practice but contrasts the different legal sovereignty foundations.

How to improve this answer: Use the Human Rights Act declaration carefully; it does not itself invalidate primary legislation.

Compression guidance: Retain commonality, British rule, Indian limits, basic structure and adaptation verdict.

Demand decoding: The directive **answer** requires a direct position on "VERIFIED DIRECT PYQ 5 - 2023 GS-II Q4 - 10 marks - 150 words", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

Detailed examiner-grade model answer:

Introduction and thesis: Both systems developed responsible cabinet government, legislative privilege and executive accountability to the lower House. Their location of ultimate legal authority differs.

The orthodox British doctrine treats Parliament as the supreme law-maker: it may enact or repeal any law, courts ordinarily cannot invalidate a Westminster Act, and one Parliament cannot entrench law against successors. Political constraints, devolution and rights review qualify practice without creating Indian-style constitutional supremacy.

Indian Parliament is constituted and limited by a written supreme Constitution. Federal distribution, Fundamental Rights, bicameral procedures and judicial review bind ordinary legislation. Constitutional amendment under Article 368 is also limited by the basic-structure doctrine.

Thus, Britain centres legal sovereignty in Parliament, whereas India centres it in the Constitution. India borrowed parliamentary government but transformed it through republicanism, federalism, entrenched rights and constitutional adjudication.

Analytical body:

- 1. Claim and named evidence:** VERIFIED DIRECT PYQ 5 - 2023 GS-II Q4 - 10 marks - 150 words **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 2. Claim and named evidence:** Question (exact): "Compare and contrast the British and Indian approaches to Parliamentary sovereignty." **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

3. **Claim and named evidence:** Model answer: Both systems developed responsible cabinet government, legislative privilege and executive accountability to the lower House. Their location of ultimate legal authority differs. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** Why this earns marks: It compares shared parliamentary practice but contrasts the different legal sovereignty foundations. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** How to improve this answer: Use the Human Rights Act declaration carefully; it does not itself invalidate primary legislation. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: Both systems developed responsible cabinet government, legislative privilege and executive accountability to the lower House. Their location of ultimate legal authority differs.

The orthodox British doctrine treats Parliament as the supreme law-maker: it may enact or repeal any law, courts ordinarily cannot invalidate a Westminster Act, and one Parliament cannot entrench law against successors. Political constraints, devolution and rights review qualify practice without creating Indian-style constitutional supremacy.

Indian Parliament is constituted and limited by a written supreme Constitution. Federal distribution, Fundamental Rights, bicameral procedures and judicial review bind ordinary legislation. Constitutional amendment under Article 368 is also limited by the basic-structure doctrine.

Thus, Britain centres legal sovereignty in Parliament, whereas India centres it in the Constitution. India borrowed parliamentary government but transformed it through republicanism, federalism, entrenched rights and constitutional adjudication.

Executable exam-length answer / compression plan: For a 10-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise three points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

VERIFIED DIRECT PYQ 6 - 2024 GS-II Q15 - 15 marks - 250 words

Question (exact): "Discuss India as a secular state and compare it with the secular principles of the US Constitution."

Model answer: India and the United States reject an established theocratic state and protect religious liberty, but their constitutional techniques reflect different histories.

The US First Amendment prohibits establishment and protects free exercise. Government must not establish religion, and religious exercise receives constitutional protection subject to generally applicable constitutional limits. The separation metaphor is influential but not absolute.

India's secularism arises from the Preamble, equality provisions and Articles 25-30. It protects conscience and practice, permits denominational institutions and minority education, and authorises regulation of secular activities and social reform. The State may engage with religious institutions, but engagement must satisfy equality, dignity, liberty and non-discrimination. Secularism is part of the basic structure under *S. R. Bommai (1994)*.

Both systems therefore protect freedom and resist state preference. The US places stronger textual emphasis on non-establishment; India combines religious liberty with reform and accommodation in a deeply plural society. Both face disputes over neutrality, exemptions and majoritarian influence.

India is secular not because the State never encounters religion, but because constitutional engagement must preserve equal citizenship. Comparison should avoid caricaturing either model as complete separation or unlimited

intervention.

Why this earns marks: It supplies textual foundations, shared aims, differences, limits and an Indian basic-structure anchor.

How to improve this answer: Add one doctrine or institutional example only if exact; distinguish denominational rights from state preference.

Compression guidance: Use common core, US clauses, Indian Articles, reform/accommodation contrast and qualified verdict.

Demand decoding: The directive **answer** requires a direct position on "VERIFIED DIRECT PYQ 6 - 2024 GS-II Q15 - 15 marks - 250 words", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

Detailed examiner-grade model answer:

Introduction and thesis: India and the United States reject an established theocratic state and protect religious liberty, but their constitutional techniques reflect different histories.

The US First Amendment prohibits establishment and protects free exercise. Government must not establish religion, and religious exercise receives constitutional protection subject to generally applicable constitutional limits. The separation metaphor is influential but not absolute.

India's secularism arises from the Preamble, equality provisions and Articles 25-30. It protects conscience and practice, permits denominational institutions and minority education, and authorises regulation of secular activities and social reform. The State may engage with religious institutions, but engagement must satisfy equality, dignity, liberty and non-discrimination. Secularism is part of the basic structure under *S. R. S.R. Bommai (1994)*.

Both systems therefore protect freedom and resist state preference. The US places stronger textual emphasis on non-establishment; India combines religious liberty with reform and accommodation in a deeply plural society. Both face disputes over neutrality, exemptions and majoritarian influence.

India is secular not because the State never encounters religion, but because constitutional engagement must preserve equal citizenship. Comparison should avoid caricaturing either model as complete separation or unlimited intervention.

Analytical body:

- 1. Claim and named evidence:** VERIFIED DIRECT PYQ 6 - 2024 GS-II Q15 - 15 marks - 250 words **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 2. Claim and named evidence:** Question (exact): "Discuss India as a secular state and compare it with the secular principles of the US Constitution." **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 3. Claim and named evidence:** Model answer: India and the United States reject an established theocratic state and protect religious liberty, but their constitutional techniques reflect different histories. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 4. Claim and named evidence:** Why this earns marks: It supplies textual foundations, shared aims, differences, limits and an Indian basic-structure anchor. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 5. Claim and named evidence:** How to improve this answer: Add one doctrine or institutional example only if exact; distinguish denominational rights from state preference. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication.

Qualification: State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: India and the United States reject an established theocratic state and protect religious liberty, but their constitutional techniques reflect different histories.

The US First Amendment prohibits establishment and protects free exercise. Government must not establish religion, and religious exercise receives constitutional protection subject to generally applicable constitutional limits. The separation metaphor is influential but not absolute.

India's secularism arises from the Preamble, equality provisions and Articles 25-30. It protects conscience and practice, permits denominational institutions and minority education, and authorises regulation of secular activities and social reform. The State may engage with religious institutions, but engagement must satisfy equality, dignity, liberty and non-discrimination. Secularism is part of the basic structure under *S. R. S.R. Bommai (1994)*.

Both systems therefore protect freedom and resist state preference. The US places stronger textual emphasis on non-establishment; India combines religious liberty with reform and accommodation in a deeply plural society. Both face disputes over neutrality, exemptions and majoritarian influence.

India is secular not because the State never encounters religion, but because constitutional engagement must preserve equal citizenship. Comparison should avoid caricaturing either model as complete separation or unlimited intervention.

Executable exam-length answer / compression plan: For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

VERIFIED SUPPORTING PYQ 7 - 2025 GS-II Q3 - 10 marks - 150 words

Question (exact): "Compare and contrast the President's power to pardon in India and in the USA. Are there any limits to it in both the countries? What are 'preemptive pardons'?"

Model answer: Article 72 empowers India's President to grant clemency in court-martial cases, offences concerning Union executive power and death sentences. The President acts on ministerial advice, and the decision is judicially reviewable on limited grounds such as mala fides, arbitrariness or irrelevant considerations.

Article II, section 2 gives the US President clemency power for federal offences, except impeachment. It does not reach State offences and is exercised personally rather than on cabinet advice. Constitutional and political accountability remain despite broad discretion.

A preemptive pardon protects against federal prosecution for already committed conduct before charge or conviction; it cannot license future offences. US practice recognises such pardons. Indian Article 72 is ordinarily framed around conviction and sentence, so the US doctrine should not be mechanically imported.

Both powers temper justice with mercy, but differ in advice, jurisdiction, express limits and review.

Why this earns marks: It answers comparison, limits and the distinct preemptive-pardon limb.

How to improve this answer: Avoid the absolute claim that all US pardons are unreviewable or that a preemptive pardon covers future conduct.

Compression guidance: Keep constitutional sources, advice, jurisdiction, limits, definition and verdict.

Demand decoding: The directive **answer** requires a direct position on "VERIFIED SUPPORTING PYQ 7 - 2025 GS-II Q3 - 10 marks - 150 words", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

Detailed examiner-grade model answer:

Introduction and thesis: Article 72 empowers India's President to grant clemency in court-martial cases, offences concerning Union executive power and death sentences. The President acts on ministerial advice, and the decision is judicially reviewable on limited grounds such as mala fides, arbitrariness or irrelevant considerations.

Article II, section 2 gives the US President clemency power for federal offences, except impeachment. It does not reach State offences and is exercised personally rather than on cabinet advice. Constitutional and political accountability remain despite broad discretion.

A preemptive pardon protects against federal prosecution for already committed conduct before charge or conviction; it cannot license future offences. US practice recognises such pardons. Indian Article 72 is ordinarily framed around conviction and sentence, so the US doctrine should not be mechanically imported.

Both powers temper justice with mercy, but differ in advice, jurisdiction, express limits and review.

Analytical body:

1. **Claim and named evidence:** VERIFIED SUPPORTING PYQ 7 - 2025 GS-II Q3 - 10 marks - 150 words

Analysis: Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

2. **Claim and named evidence:** Question (exact): "Compare and contrast the President's power to pardon in India and in the USA. Are there any limits to it in both the countries? What are 'preemptive pardons'?" **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

3. **Claim and named evidence:** Both powers temper justice with mercy, but differ in advice, jurisdiction, express limits and review. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

4. **Claim and named evidence:** Why this earns marks: It answers comparison, limits and the distinct preemptive-pardon limb. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

5. **Claim and named evidence:** How to improve this answer: Avoid the absolute claim that all US pardons are unreviewable or that a preemptive pardon covers future conduct. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: Article 72 empowers India's President to grant clemency in court-martial cases, offences concerning Union executive power and death sentences. The President acts on ministerial advice, and the decision is judicially reviewable on limited grounds such as mala fides, arbitrariness or irrelevant considerations.

Article II, section 2 gives the US President clemency power for federal offences, except impeachment. It does not reach State offences and is exercised personally rather than on cabinet advice. Constitutional and political accountability remain despite broad discretion.

A preemptive pardon protects against federal prosecution for already committed conduct before charge or conviction; it cannot license future offences. US practice recognises such pardons. Indian Article 72 is ordinarily framed around conviction and sentence, so the US doctrine should not be mechanically imported.

Both powers temper justice with mercy, but differ in advice, jurisdiction, express limits and review.

Executable exam-length answer / compression plan: For a 10-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise three points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for

causation, group variation and legal-outcome limits.

VERIFIED SUPPORTING PYQ 8 - 2025 GS-II Q13 - 15 marks - 250 words

Question (exact): "Discuss the evolution of collegium system in India. Critically examine the advantages and disadvantages of the system of appointment of the Judges of the Supreme Court of India and that of the USA."

Model answer: India's Constitution formally vests Supreme Court appointments in the President after consultation. The First Judges Case (1981) favoured executive primacy; the Second Judges Case (1993) created judicial primacy through the collegium; the Third Judges Case (1998) expanded the consultative collegium. The NJAC amendment was invalidated in 2015 for violating judicial independence.

India's collegium insulates appointments from direct party control and protects decisional independence. Its disadvantages are opacity, limited published criteria, weak diversity accountability, delay and an unclear responsibility chain.

The United States uses presidential nomination and Senate advice and consent. Public hearings and separated institutional participation create visible democratic accountability and a clear record. Yet partisan polarisation, strategic vacancies and ideological confirmation can make appointments openly political. Life tenure raises the stakes further.

Neither model resolves the independence-accountability tension. India should retain judicial independence while publishing selection criteria, reasons, diversity data and timelines and improving secretariat capacity. The US comparison warns against converting transparency into party capture.

The lesson is accountable independence, not transplantation: appointment design must be evaluated with tenure, political parties, conventions and the wider constitutional structure.

Why this earns marks: It traces collegium evolution, critically assesses both systems and derives a context-sensitive reform lesson.

How to improve this answer: Name the Judges Cases and NJAC without inventing vote details; distinguish public accountability from partisan control.

Compression guidance: Preserve chronology, two merits and defects per system, and accountable-independence reform.

Demand decoding: The directive **answer** requires a direct position on "VERIFIED SUPPORTING PYQ 8 - 2025 GS-II Q13 - 15 marks - 250 words", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

Detailed examiner-grade model answer:

Introduction and thesis: India's Constitution formally vests Supreme Court appointments in the President after consultation. The First Judges Case (1981) favoured executive primacy; the Second Judges Case (1993) created judicial primacy through the collegium; the Third Judges Case (1998) expanded the consultative collegium. The NJAC amendment was invalidated in 2015 for violating judicial independence.

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The lesson is accountable independence, not transplantation: appointment design must be evaluated with tenure, political parties, conventions and the wider constitutional structure.

Analytical body:

1. **Claim and named evidence:** VERIFIED SUPPORTING PYQ 8 - 2025 GS-II Q13 - 15 marks - 250 words
Analysis: Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** Question (exact): "Discuss the evolution of collegium system in India. Critically examine the advantages and disadvantages of the system of appointment of the Judges of the Supreme Court of India and that of the USA." **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** The lesson is accountable independence, not transplantation: appointment design must be evaluated with tenure, political parties, conventions and the wider constitutional structure. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** Why this earns marks: It traces collegium evolution, critically assesses both systems and derives a context-sensitive reform lesson. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** How to improve this answer: Name the Judges Cases and NJAC without inventing vote details; distinguish public accountability from partisan control. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: India's Constitution formally vests Supreme Court appointments in the President after consultation. The First Judges Case (1981) favoured executive primacy; the Second Judges Case (1993) created judicial primacy through the collegium; the Third Judges Case (1998) expanded the consultative collegium. The NJAC amendment was invalidated in 2015 for violating judicial independence.

India's collegium insulates appointments from direct party control and protects decisional independence. Its disadvantages are opacity, limited published criteria, weak diversity accountability, delay and an unclear responsibility chain.

The United States uses presidential nomination and Senate advice and consent. Public hearings and separated institutional participation create visible democratic accountability and a clear record. Yet partisan polarisation, strategic vacancies and ideological confirmation can make appointments openly political. Life tenure raises the stakes further.

Neither model resolves the independence-accountability tension. India should retain judicial independence while publishing selection criteria, reasons, diversity data and timelines and improving secretariat capacity. The US comparison warns against converting transparency into party capture.

The lesson is accountable independence, not transplantation: appointment design must be evaluated with tenure, political parties, conventions and the wider constitutional structure.

Executable exam-length answer / compression plan: For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

ORIGINAL MAINS PRACTICE 1 - 10 marks - 150 words

Question: Distinguish constitutional borrowing from constitutional adaptation with reference to India.

Directive: Distinguish

Model answer:

Borrowing identifies a source influence; adaptation explains how India changed that influence to serve its own constitutional purposes. The distinction is visible in three examples.

First, India adopted Westminster cabinet government, but Articles 74-75 place it inside a republican, written and judicially reviewable Constitution. Secondly, Fundamental Rights and judicial review reflect US influence, yet India added express restrictions, constitutional writs and a DPSP relationship. Thirdly, Canadian strong-centre federal ideas appear in Union residuary power, but Indian federalism also uses the Seventh Schedule, single citizenship and asymmetric arrangements.

These changes affect operation. Collective responsibility is textually secured in Article 75(3); Parliament is limited by basic structure; and the Union-State balance remains judicially enforceable.

Therefore, constitutional ancestry is evidence of learning, not proof of identity. India imported mechanisms but re-tuned them to a federal, republican and transformative order.

[ORIGINAL MAINS 1 MODEL ANSWER WORD COUNT: 137]

Examiner note: The model follows claim -> named evidence -> analysis -> qualification and stays within the stated ceiling.

ORIGINAL MAINS PRACTICE 2 - 10 marks - 150 words

Question: Why must constitutional text, convention, statute and political practice be separated in comparative analysis?

Directive: Explain

Model answer:

A valid comparison separates legal source from political operation. Constitutional text supplies supreme rules; statutes implement them; conventions guide political actors; practice records how institutions actually behave.

India and the United Kingdom illustrate the need. Collective responsibility is expressly stated in Article 75(3) in India, while much Westminster conduct rests on convention. The UK's Human Rights Act authorises interpretation and declarations of incompatibility, but parliamentary sovereignty remains the legal baseline. In India, Fundamental Rights and judicial review can invalidate legislation.

If sources are collapsed, repeated practice may be mistaken for legal validity, or a convention may be assigned the force of entrenched text. Party majorities may also make formally similar cabinets operate differently.

Thus, compare text with text and practice with practice, then explain how convention and political context mediate each design.

[ORIGINAL MAINS 2 MODEL ANSWER WORD COUNT: 133]

Examiner note: The model follows claim -> named evidence -> analysis -> qualification and stays within the stated ceiling.

ORIGINAL MAINS PRACTICE 3 - 15 marks - 250 words

Question: Compare parliamentary and presidential government through the Indian and United States constitutional designs.

Directive: Compare

Model answer:

India and the United States are constitutional democracies, but they organise executive accountability through different institutional logics.

India uses a dual parliamentary executive. The President is head of State, while the Prime Minister and Council of Ministers exercise political authority and remain collectively responsible to the Lok Sabha under Article 75(3). Ministers sit in Parliament, executive and legislative leadership are fused, and loss of confidence can remove the government. Lok Sabha may be dissolved within constitutional rules.

The United States combines head of State and government in a separately elected President. Presidential and congressional terms are independently grounded; executive officers do not simultaneously sit in Congress. The President cannot dissolve Congress, and Congress cannot remove the President by no-confidence. Removal requires impeachment by the House and conviction by the Senate. Vetoes, appointments, appropriations and oversight create checks but also deadlock.

Fusion gives India continuous political responsibility and easier replacement, yet a disciplined majority may concentrate power. Separation gives the United States tenure stability and multiple veto points, yet divided government may obstruct policy.

Neither model is universally superior. Office design, party system and federal context determine performance; India should improve parliamentary accountability rather than transplant a presidential executive.

[ORIGINAL MAINS 3 MODEL ANSWER WORD COUNT: 199]

Examiner note: The model follows claim -> named evidence -> analysis -> qualification and stays within the stated ceiling.

ORIGINAL MAINS PRACTICE 4 - 15 marks - 250 words

Question: Compare rights review in India, the United Kingdom, Canada and South Africa.

Directive: Compare

Model answer:

The four systems protect rights through different combinations of text, limitation and remedy.

India entrenches Fundamental Rights under constitutional supremacy. The Supreme Court and High Courts may invalidate unconstitutional law and issue writs. *Maneka Gandhi* requires fair procedure, while *K. S. Puttaswamy* uses legality, legitimate aim, proportionality and safeguards. Rights coexist with express restrictions and non-justiciable DPSPs.

The United Kingdom protects rights through common law, statutes and the Human Rights Act 1998. Courts seek compatible interpretation and may issue a declaration of incompatibility, but that declaration does not itself invalidate a Westminster Act.

Canada's Charter combines judicial review with section 1 reasonable limits. Section 33 permits an express, renewable override of specified rights; it is a bounded constitutional device, not general parliamentary sovereignty.

South Africa's transformative Bill of Rights expressly includes socio-economic rights. *Grootboom* reviewed whether the housing programme reasonably addressed urgent need; it did not create an unconditional immediate house for every claimant. Section 36 supplies a general limitations framework.

The comparison shows that rights strength depends on the entire chain from text to remedy. India may learn from reasoned limitations and legislative dialogue, but any reform must preserve its own constitutional supremacy and basic-structure commitments.

[ORIGINAL MAINS 4 MODEL ANSWER WORD COUNT: 197]

Examiner note: The model follows claim -> named evidence -> analysis -> qualification and stays within the stated ceiling.

ORIGINAL MAINS PRACTICE 5 - 20 marks - 250 words

Question: Evaluate India's federal design against the United States, Canada and Australia.

Directive: Evaluate

Model answer:

India is a federation or Union with constitutionally divided powers and marked centralising features; its design should be evaluated as a bundle rather than labelled quasi-federal.

On legislative allocation, India enumerates Union, State and Concurrent fields and assigns residue to Parliament. Canada also places residue federally, whereas the US Tenth Amendment and Australian design broadly preserve unassigned authority for States. India's Union can alter State boundaries by constitutional procedure, unlike the stronger territorial consent protection associated with US and Australian States.

Shared rule also differs. Rajya Sabha represents States unequally and is indirectly elected. US and Australian Senates use equal State representation; the US Senate additionally confirms appointments and approves treaties. None is equivalent to executive delegation.

India has an integrated judiciary, single citizenship and emergency centralisation. Yet *S. R. Bommai* affirms federalism and subjects Article 356 to review. Fiscal federalism operates through tax assignment, the Finance Commission, grants and the GST Council; formal State powers therefore coexist with vertical dependence. Asymmetry accommodates distinctive regions within the Union.

Canada confirms that a federation may constitutionally favour the centre; the United States and Australia show stronger constituent-unit protection. India's synthesis sought unity after Partition while preserving diversity.

Reform should strengthen consultation, predictable finance and institutional federalism, not pursue formal symmetry. The design is federal in structure, Union-weighted in operation and constitutionally reviewable.

[ORIGINAL MAINS 5 MODEL ANSWER WORD COUNT: 221]

Examiner note: The model follows claim -> named evidence -> analysis -> qualification and stays within the stated ceiling.

ORIGINAL MAINS PRACTICE 6 - 20 marks - 250 words

Question: Assess whether foreign constitutional mechanisms should be transplanted into India.

Directive: Assess

Model answer:

Foreign constitutional experience is a laboratory, not a catalogue. A transplant should pass functional, structural, incentive, capacity, rights and accountability tests.

First, identify the public function. US Senate confirmation seeks visible democratic participation in judicial appointments; India's collegium protects judges from executive primacy. Importing hearings without accounting for party polarisation may exchange opacity for partisan capture. The better lesson is published criteria, reasons and timelines within accountable independence.

Secondly, test structural fit. Canada's section 33 operates within Charter supremacy and applies only to specified rights. Detached from those limits, an Indian override could weaken basic-structure and rights protection. Germany's textual eternity clause and India's judicially developed basic structure protect identity through different sources; identical drafting is unnecessary.

Thirdly, examine political incentives and capacity. Westminster conventions operate within a distinct party and constitutional history. India codified collective responsibility and subjects Parliament to rights, federalism and review. Borrowed rules consequently perform a different job.

Comparative judgments such as *Marbury*, *Youngstown*, *Miller*, *Grootboom* and *Makwanyane* may offer persuasive reasons, but Article 141 and Indian text control the result.

India should adopt transferable principles-transparency, proportionality, federal consultation and time-limited emergency supervision-while redesigning mechanisms for Indian institutions. Fit, not fidelity to the donor, is the constitutional standard.

[ORIGINAL MAINS 6 MODEL ANSWER WORD COUNT: 204]

Examiner note: The model follows claim -> named evidence -> analysis -> qualification and stays within the stated ceiling.